

25PSCV04276 25PSCV04276

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Case Number: 25PSCV04276 Hearing Date: September 1, 2026 Dept: G

Defendant

Kia America, Inc.'s Motion for Protective Order

Respondent:

Plaintiff Nancy Cain

TENTATIVE

RULING

Defendant

Kia America, Inc.'s Motion for Protective Order is DENIED WITHOUT PREJUDICE.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On June 11, 2023, plaintiff Nancy Cain (Cain) allegedly purchased a crossover SUV manufactured by defendant Kia America, Inc. (KA).

On

December 1, 2025, Cain filed the Complaint, alleging causes of action for (1) breach of express warranty obligations, (2) breach of implied warranty obligations, (3) failure to repair in a good and workmanlike manner, and (4) failure to timely repair.

On

June 3, 2026, the court conducted an informal discovery conference. On July 1, 2026, KA filed this motion for

protective order. On August 19, 2026,
Cain filed the opposition, and on August 25, 2026, KA filed the reply.

This
case is set for an order to show cause re: status of discovery and a hearing on
the motion on September 1, 2026.

ANALYSIS

KA
moves for a protective order preventing the public disclosure of proprietary,
commercially sensitive, and confidential business information. For the following reasons, the motion for
protective order is DENIED WITHOUT PREJUDICE.

Legal Standard

In
accordance with the liberal policies underlying the discovery procedures,
California courts are broad-minded in determining whether discovery is
reasonably calculated to lead to admissible evidence. (*Pacific Telephone & Telegraph Co. v.*
Super. Ct. (1970) 2 Cal.3d 161, 172; *Pettie v. Super. Ct.* (1960) 178
Cal.App.2d 680, 687.) As a practical
matter, it is difficult to define at the discovery stage what evidence will be
relevant at trial, so the party seeking discovery is entitled to substantial
leeway. (*Pacific Telephone &*
Telegraph Co., *supra*, at 172.)
Courts resolve any doubt in favor of permitting discovery. (*Id.* at 173; *Norton v. Super. Ct.* (1994)
24 Cal.App.4th 1750, 1761, stating, “if an error is made in ruling on a
discovery motion, it is better that it be made in favor of granting discovery
of the nondiscoverable rather than denying discovery of information vital to
preparation or presentation of the party’s case or to efficacious settlement of
the dispute.”)

That
being said, “The court shall limit the scope of discovery if it determines that
the burden, expense, or intrusiveness of that discovery clearly outweighs the
likelihood that the information sought will lead to the discovery of admissible
evidence.” (Code Civ. Proc., § 2017.020,
subd. (a).) “The court may make this

determination pursuant to a motion for protective order by a party or other affected person.” (Ibid.) A protective order cannot be granted ex parte, and the motion shall be accompanied by a meet and confer declaration showing a good faith attempt at an informal resolution to each issue presented by the motion. (St. Paul Fire & Marine Ins. Co. v. Super. Ct. (1984) 156 Cal.App.3d 82, 85–86; Code Civ. Proc., § 2017.020, subd. (a).) Generally, the burden of proof is on the party seeking the protective order to show “good cause” for the order they seek. (Fairmont Ins. Co. v. Super. Ct. (2000) 22 Cal.4th 245, 255.) The exception to this general rule is if the responding party argues “the number of specially prepared interrogatories is unwarranted, [then] the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc., § 2030.040, subd. (b).)

A

court may make any order with respect to interrogatories, requests for production of documents, requests for admissions, and depositions that justice requires to protect a party from “unwanted annoyance, embarrassment or oppression[,] or undue burden and expense.”

(Code Civ. Proc., §§ 2025.420, 2030.090, 2031.060, 2033.080.) A discovery request is “oppressive” when there is “some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (West Pico Furniture Co. of

Los Angeles v. Super. Ct. (1961) 56 Cal.2d 407, 417.) The court shall restrict the frequency or extent of use of the discovery methods if it determines either (1) the discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive; or (2) the selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in

controversy, and the importance of the issues at stake in the litigation. (Code Civ. Proc., § 2019.030, subd. (a).) The court may then make any order as may be

appropriate to protect the parties, the witness, or the consumer from unreasonable or oppressive demands including unreasonable violation of a witness’s or consumer’s right of privacy.

(Code Civ. Proc., § 1987.1.)

Discussion

KA

argues that the court should issue a protective order preventing the public disclosure

of the Service Policies and Procedures Manual, Customer Care Case Report, Warranty History Inquiry and Warranty Claim Inquiry, and Vehicle Specification Sheet because they include trade secrets or other confidential research, development, or commercial information. (KA does not seek to prevent the private disclosure of these documents to Cain in this litigation.) The court agrees.

In

2024, California reformed the Song-Beverly Act to reduce court congestion and facilitate early resolution by mandating initial disclosures and requiring the parties to participate in mediation shortly after the pleadings are filed. (See Code Civ. Proc., § 871.26, subd. (b).) The Song-Beverly Act requires parties to exchange initial disclosures and documents within 60 days of the filing of an answer or other responsive pleading. (See Code Civ. Proc., § 871.26, subds. (b), (d).) Manufacturers may affirmatively opt into the statutory scheme. (See Code Civ. Proc., § 871.30, subd. (a).)

Under

the scheme, a vehicle buyer must provide to the vehicle manufacturer the sales or lease agreement, current registration, finance information, repair orders, pre-suit communications with the vehicle manufacturer, current mileage, primary drivers, vehicle location and possession, collision or accident history, and aftermarket modifications. (See Code Civ. Proc., § 871.26, subds. (f)–(g).)

A vehicle manufacturer must provide to the vehicle buyer all vehicle-specific manuals, warranties, sales or lease documents, technical and service bulletins, warranty and service histories, internal communications, and policies or evaluations related to restitution or replacement requests. (See Code Civ. Proc., § 871.26, subd. (h).) The documents and information must be produced without awaiting a discovery request and without the need for a protective order. (See Code Civ. Proc., § 871.26, subd. (b).)

Here,

the parties agree that the documents in question are encompassed by the Song-Beverly Act initial disclosure requirement. (See Opp., p. 3, 5–7; see also Reply, p. 2.) KA does not seek to prevent the disclosure of those documents to Cain in this litigation; instead, KA seeks to prevent the disclosure of those documents to the public. (See Mot., p. 8; see also Reply,

p. 3.)

The

moving party bears the burden to show good cause for a protective order. (See *Emerson Electric Co. v. Super. Ct.* (1997) 16 Cal.4th 1101, 1110.) The declaration of KA's counsel, however, does not establish an evidentiary foundation for KA's arguments against disclosure to the public based on trade secrets or other confidential research, development, or commercial information, as counsel does not claim to have personal knowledge of KA's manufacturing business or customer care. (See generally *Sniderman Decl.*; cf. *Stadish v. Super. Ct.* (1999) 71 Cal.App.4th 1130, 1145, finding that a party could not obtain a protective order for supposed trade secrets based on affidavits that were "conclusory in nature.")

Therefore,

on this record, the court finds that KA fails to establish good cause and a proper foundation for the protective order.

Accordingly,

the motion for protective order is DENIED WITHOUT PREJUDICE.

Additionally,

the court determines that monetary sanctions are inappropriate. The court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (See Code Civ. Proc., § 2017.020, subd. (b).)

"Substantial justification means that a justification is clearly reasonable because it is well grounded in both law and fact." (See *Evilsizor v. Sweeney* (2014) 230 Cal.App.4th 1304, 1312, cleaned up.)

As

stated above, KA did not seek to prevent Cain from obtaining the subject documents through the Song-Beverly Act's initial disclosure provisions. As such, the court finds it would be unjust to impose sanctions against KA.

Therefore, the court declines to impose monetary sanctions for the unsuccessful motion for protective order.

CONCLUSION

For

these reasons, the motion for protective order is DENIED WITHOUT PREJUDICE.